

10 & 11 GEO. 6. *Mexborough and Swinton
Traction (Trolley Vehicles) Order
Confirmation Act, 1947.*

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CHAPTER xxvi.

An Act to confirm a Provisional Order made by the Minister of Transport under the Mexborough and Swinton Tramways Act 1926 relating to Mexborough and Swinton Traction Company's trolley vehicles.

[31st July 1947.]

WHEREAS under the authority of section six of the 16 & 17 Geo. 5. Mexborough and Swinton Tramways Act 1926 the c. lxxvi. Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed :

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order set out in the schedule to this Act annexed shall Confirmation be and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said schedule shall schedule. from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

2. This Act may be cited as the Mexborough and Swinton Short title. Traction (Trolley Vehicles) Order Confirmation Act 1947.

SCHEDULE.

MEXBOROUGH AND SWINTON TRACTION.

Order authorising the Mexborough and Swinton Traction Company to use trolley vehicles upon certain routes in the urban districts of Mexborough and Conisbrough in the west riding of the county of York.

Short and
collective
titles.

1. This Order may be cited as the Mexborough and Swinton Traction (Trolley Vehicles) Order 1947 and the Mexborough and Swinton Traction Acts and Orders 1902 to 1934 and this Order may be cited together as the Mexborough and Swinton Traction Acts and Orders 1902 to 1947.

Interpretation.

2. In this Order the following expressions (unless the subject or context otherwise requires) have the meanings hereafter assigned to them (namely) :—

“The Company” means the Mexborough and Swinton Traction Company ;

19 & 20 Geo. 5.
c. lxxv.

“The Act of 1929” means the Mexborough and Swinton Traction Act 1929.

Power to use
trolley vehicles.
20 & 21 Geo. 5.
c. 43.

3. Subject to the provisions of this Order of the Mexborough and Swinton Tramways Act 1926 so far as the same have not been modified by the Road Traffic Act 1930 and of section 19 (Power to provide vehicles and equipment) of the Act of 1929 the Company may provide maintain equip and use trolley vehicles on the following routes all in the west riding of the county of York in addition to any other routes upon which they are already authorised to provide maintain equip and use trolley vehicles (that is to say) :—

24 & 25 Geo. 5.
c. xlviii.

Route No. 1 (4 furlongs 2·4 chains in length) wholly in the urban district of Mexborough commencing in Adwick Road at the termination of Route No. 2 authorised by the Mexborough and Swinton Traction (Trolley Vehicles) Order Confirmation Act 1934 and proceeding along Princess Road across Harlington Lane along Morton Road thence in a northerly direction along Hirst Gate and terminating at the junction of that road with Windhill Terrace ;

Route No. 2 (3·6 chains in length) wholly in the urban district of Conisbrough commencing with a connection with Route No. 2 authorised by the said Act of 1926 at the junction of Station Road with Dale Road proceeding in a southerly direction along Station Road and terminating with a connection with the same Route No. 2 in Castle Street at the junction of that street with Station Road :

Provided that before equipping any route to include a turning point or before arranging for a new turning point on any route the Company shall submit plans of the turning point to the Minister of Transport for approval and shall also submit a copy of such plans to the road authority and that before approving any such plans the Minister shall give to the road authority an opportunity of making representations with reference thereto :

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Provided also that if the Company shall not have commenced to use trolley vehicles upon each of the routes authorised by this Order within five years from the passing of the Act confirming this Order or such extended time as the Minister of Transport may upon the application of the Company allow the powers conferred by this Order with reference to the use of trolley vehicles upon the route or routes upon which the Company shall not have commenced to use trolley vehicles shall cease to be exerciseable.

4. The provisions of section 17 (Power to local authorities to purchase undertaking) of the Act of 1929 shall extend and apply to Routes Nos. 1 and 2 inclusive by this Order authorised in all respects as if the same had been authorised by the existing Acts and Order referred to in that section and by the Act of 1929. Power to local authorities to purchase routes Nos. 1 and 2.

5. The Company may apply towards any of the purposes of this Order any moneys which they are already authorised to raise and which may not be required by them for the purposes for which the same were authorised to be raised : Company may apply their funds.

Provided that so long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 or under that Act as extended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945 or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by an order made under section 1 of the Borrowing (Control and Guarantees) Act 1946 it shall not be lawful to exercise the powers conferred by this section without such consent. 2 & 3 Geo. 6. c. 62.
9 Geo. 6. c. 10.
9 & 10 Geo. 6. c. 58.

6. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company. Costs of Order.

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